

CHAPTER 26.

An Act to amend the Law relating to Charges on Land and to matters connected therewith.

[30th July 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) The business of the registrar of judgments hitherto conducted in the central office of the Supreme Court shall be conducted in the Office of Land Registry, and the Lord Chancellor may by order provide for transferring to the Office of Land Registry such officers as may be required for conducting that business, and such books and papers as may be needed in connexion therewith, and for carrying out any arrangements incidental to or consequential on the transfer, and for abolishing the office of registrar of judgments.

Transfer to Land Registry Office of business relating to the registry of judgments.

(2.) Provided that nothing in this section shall apply to the registry of Scotch and Irish judgments established under the Judgments Extension Act, 1868, and the Inferior Courts Judgments Extension Act, 1882, or any Act amending the same.

31 & 32 Vict. c. 54.
45 & 46 Vict. c. 31.

(3.) This section shall come into operation on such day as the Lord Chancellor at any time after the passing of this Act may by order direct.

2.—(1.) A judgment or recognizance, whether obtained or entered into on behalf of the Crown or otherwise, and whether obtained or entered into before or after the commencement of this Act, shall not operate as a charge on land, or on any interest in land, or on the unpaid purchase money for any land, unless or until a writ or order for the purpose of enforcing it is registered under section five of the Land Charges Registration and Searches Act, 1888.

Closing of register of judgments.

51 & 52 Vict. c. 51

(2.) This section shall apply to any inquisition finding a debt due to the Crown, and any obligation or specialty made to the Crown, and any acceptance of office from or under the Crown, whatever may have been its date, in like manner as it applies to a judgment.

(3.) Except under an order of the High Court, no entry shall be made in any register kept under sections nineteen and twenty-one of the Judgments Act, 1838, section eight of the Judgments Act, 1839, the Law of Property Amendment Act, 1860, the Judgments Act, 1864, or the Crown Suits, &c. Act, 1865.

1 & 2 Vict. c. 119.
2 & 3 Vict. c. 11.
23 & 24 Vict. c. 33.
27 & 28 Vict. c. 112.
28 & 29 Vict. c. 104.

3. Section six of the Land Charges Registration and Searches Act, 1888, shall apply to every writ and order affecting land issued or made by any court for the purpose of enforcing a judgment, whether obtained on behalf of the Crown or otherwise, and whether obtained before or after the commencement of this Act, and to every delivery in execution or other proceeding taken in pursuance of any such writ or order, or in obedience thereto.

Amendments of 51 & 52 Vict. c. 51.

7 Anne c. 20
not to apply
to certain
charges.

4. From and after the passing of this Act the Middlesex Registry Act, 1708, shall not apply to any instrument made after the passing of this Act and capable of registration under this Act or the Land Charges Registration and Searches Act, 1888.

Repeal.

5. As from the commencement of this Act the enactments specified in the schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.

Extent, com-
mencement,
short title, and
construction.

6.—(1.) This Act shall not extend to Scotland or Ireland.

(2.) This Act shall, except as otherwise expressly provided, come into operation on the first day of July one thousand nine hundred and one.

51 & 52 Vict.
c. 51.

(3.) This Act may be cited as the Land Charges Act, 1900, and shall be construed as one with the Land Charges Registration and Searches Act, 1888.

SCHEDULE.

Section 5.

ENACTMENTS REPEALED.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
1 & 2 Vict. c. 110.	The Judgments Act, 1838.	Section nineteen, and section twenty-one, from the words "Provided always" to "one shilling."
2 & 3 Vict. c. 11.	The Judgments Act, 1839.	Sections two, three, five, six, eight, and nine, and section four, except so far as it applies to <i>lis pendens</i> .
3 & 4 Vict. c. 82.	The Judgments Act, 1840.	Section two.
18 & 19 Vict. c. 15.	The Judgments Act, 1855.	Section two, from "But no judgment" to the end of the section; section three, except so far as it relates to <i>lis pendens</i> ; and sections four to eight.
23 & 24 Vict. c. 38.	The Law of Property Amendment Act, 1860.	Sections one to five.
27 & 28 Vict. c. 112.	The Judgments Act, 1864.	Sections one, two, and three, and, in section four, the words "and, whose writ or other process of execution shall be duly registered."
28 & 29 Vict. c. 104.	The Crown Suits, &c. Act, 1865.	Sections forty-eight and forty-nine.
51 & 52 Vict. c. 51.	The Land Charges Registration and Searches Act, 1888.	Proviso (a) of section six.